

COMMONWEALTH OF MASSACHUSETTS

MIDDLESEX, ss.

SUPERIOR COURT
CIVIL ACTION NO.

25CV2990

PLEASANT STREET LEASEHOLD
CONDOMINIUM ASSOCIATION,

Plaintiff,

v.

EDNOR ALTIDOR,

Defendant,

and

CAMBRIDGE SAVINGS BANK, THE
MASSACHUSETTS HOUSING PARTNERSHIP
FUND BOARD AND CITY OF CAMBRIDGE,
COMMUNITY DEVELOPMENT DEPARTMENT,

Defendants/Party-In-Interest.

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PRELIMINARY STATEMENT

1. This is an in rem action brought by the organization of unit owners of a condominium pursuant to G.L. c. 183A, §§ 6(a) and 6(c), and G.L. c. 254, §§ 5 and 5A, to establish and enforce a lien for unpaid common expenses. This action further seeks a determination of the priority of the unit owner organization's lien pursuant to G.L. c. 183A, § 6(c).

JURISDICTION

2. This Court has original jurisdiction over this matter pursuant to G.L. c. 254, § 5.

PARTIES

3. The Plaintiff, Pleasant Street Condominium Association (“Condominium Association”), was established by By-Laws, dated March 24, 2003, and filed with the Land Court District of the Middlesex County Southern Registry of Deeds (“Registry”) as Document No. 1263445 on Certificate No. 493, which Condominium Association is the organization of unit owners for Pleasant Street Leasehold Condominium, a condominium established by Master Deed, dated March 24, 2003, and filed with said Registry as Document No. 126344 on Certificate No. 493 (“Condominium”). The Condominium is located in Cambridge, Middlesex County, Massachusetts. The Condominium Association brings this action pursuant to its powers in the said By-Laws and/or in G.L. c. 183A, § 10(b)(4). Additionally, it brings this action on behalf of all other parties in interest pursuant to G.L. c. 254, § 5.

4. The Defendant, Ednor Altidor (“Defendant”), is the record owner of Unit 308 at the Condominium (“Unit”), pursuant to a Unit Deed, dated November 21, 2003, and filed with the Registry as Document No. 1300857 on Certificate No. U16112. The Unit has an address of 157 Pleasant Street, Unit 308, Cambridge, MA 02139. Upon information and belief, the Defendant resides in the Unit.

5. The Defendant/Party-In-Interest, Cambridge Savings Bank (“First Mortgagee”), has a principal place of business located at 1374 Massachusetts Avenue, Cambridge, MA 02138. The First Mortgagee is the holder of a first mortgage of record upon the Unit, dated November 21, 2003, and filed with the Registry as Document No. 1300858 on Certificate No. U16112, and is the holder of a second mortgage of record upon the Unit dated November 21, 2003, and filed with the Registry as Document No. 1300859 on Certificate No. U16112.

6. The Defendant/Party-In-Interest, Massachusetts Housing Partnership Fund Board ("Third Mortgage"), has a principal place of business located at Two Oliver Street, Boston, MA 02109. The Third Mortgagee is the holder of a third mortgage of record upon the Unit, dated November 21, 2003, and filed with the Registry as Document No. 1300860 on Certificate No. U16112.

7. The Defendant/Party-In-Interest, City of Cambridge, Community Development Department ("Fourth Mortgage"), has a principal place of business located at 344 Broadway, Cambridge, MA 02139. The Fourth Mortgagee is the holder of a fourth mortgage of record upon the Unit, dated November 21, 2003, and filed with the Registry as Document No. 1300861 on Certificate No. U16112.

FACTUAL ALLEGATIONS

6. Pursuant to G.L. c. 183A, § 6, and the applicable provisions of the Condominium's governing documents, there is a lien against the Unit in the amount of Four Thousand Nine Hundred Seventy Eight Dollars and 91/100 (\$4,978.91) (hereinafter, "common expenses").

7. Pursuant to G.L. c. 183A, § 6(a), the lien includes attorneys' fees and costs incurred by the Condominium Association in pursuing this matter in accordance with said provisions.

8. Pursuant to, and in accordance with, G.L. c. 183A, § 6(c), the Condominium Association gave the Defendant notice of said common expenses by certified and first-class mail.

9. Pursuant to G.L. c. 183A, § 6(c), the Condominium Association gave notice to the First Mortgagee, by certified and first-class mail, of the delinquency and its intention to file this action.

COUNT I - AGAINST THE UNIT

10. Pursuant to the provisions of G.L. c. 183A, §§ 6(a) and 6(c), the common expenses due as aforesaid, and such attorneys' fees and costs as may additionally accrue hereafter, constitute a lien upon the Unit.

COUNT II - ESTABLISHING THE PRIORITY OF THE LIEN

11. Pursuant to the provisions of G.L. c. 183A, § 6(c), the lien on the Unit has priority over all other liens and encumbrances except: (a) liens and encumbrances recorded prior to the recording of the Master Deed; (b) liens for real estate taxes and other municipal assessments or charges; and (c) any first mortgage of record.

12. Pursuant to the provisions of G.L. c. 183A, § 6(c), the Condominium Association's lien is prior to the first mortgage of record to the extent of monthly common expense assessments that became due during the six (6) months prior to the institution of this action plus all attorneys' fees and costs incurred by the Condominium Trust in the enforcement thereof.

PRAYER FOR RELIEF

WHEREFORE, the Condominium Association prays that this Honorable Court enter Judgment for the Condominium Association and against the Defendant and First Mortgagee as follows:

- (a) declare that there is a lien upon the Unit in the amount as may be found;
- (b) declare that the lien is entitled to the priority as provided for by law;
- (c) order the sale of the Unit to satisfy, in whole or in part, the declared lien; and
- (d) grant such other relief as may be just and proper.

Respectfully submitted,

PLEASANT STREET LEASEHOLD
CONDOMINIUM ASSOCIATION,

/s/ Heather M. Gamache

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Dated: December 2, 2025